

Jharkhandey Singh v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 15 March 2023 · WRIT - C No. 6956 of 2023 ·
Petition disposed after the theft-dues recovery was withdrawn.

HEADNOTE

A writ against a recovery citation for electricity-theft dues was disposed of after the electricity department stated that the recovery had been withdrawn and that a fresh order would be passed. The Court gave liberty to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, and did not decide the theft allegation or the citation on merits.

FACTUAL SUMMARY

Jharkhandey Singh petitioned the Allahabad High Court against the State of Uttar Pradesh and four others, challenging a recovery citation dated 18 August 2022 issued by respondent nos. 4 and 5 for electricity dues said to arise from theft. On 28 February 2023 counsel for the electricity department sought time for instructions, and the matter was put up as fresh on 15 March 2023. On that date the department stated that the recovery had been withdrawn and that a fresh order would be passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

fresh order after withdrawal of theft-dues recovery

HOLDING

On the electricity department's statement that the recovery citation dated 18.08.2022 had been withdrawn and that a fresh order would be passed, the writ was disposed of with liberty to the department to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2

FLAG The order names the U.P. Electricity Supply Code, 2005 but cites no numbered clause; 'procedure' records that wording and is not a Code clause id.

PRINCIPLE TAGS

procedural-listing-no-construction The petition ended on the department's withdrawal of the recovery citation and its undertaking to pass a fresh order. The Court did not construe any clause of the Supply Code; it only required the fresh order to follow the procedure the Code prescribes. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN AND WHAT DUES, IF ANY, REMAIN RECOVERABLE.

The impugned recovery was withdrawn. The Court left any fresh order to the department under the Supply Code procedure and did not examine the theft allegation or the citation dated 18.08.2022 on merits. ¶ 2